



POLICE DEPARTMENT

December 12, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202203990 (Incident Date: June 16, 2022) regarding Police Officer Joshua Lawrence, Tax No. 966662 (DADS No. 2023-29280)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202203990, pertaining to Police Officer Joshua Lawrence. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Lawrence would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner determined that Police Officer Lawrence made statements to an individual which reflected, in good faith, the circumstances as they appeared to be; the individual was going to be taken to the hospital for an evaluation. This was clearly a reasonable explanation, not a threat, as Officer Lawrence had been directed to handcuff the individual immediately before his lieutenant requested an ambulance to the scene. There is no evidence which points toward the statements being made as threats, but rather they provided factual guidance about what was happening at that point, in Officer Lawrence's judgement. Although the lieutenant, in consultation with the ambulance's emergency medical technicians, later decided not to send the individual to the hospital, this change of direction did not alter the reasonableness of Officer Lawrence's statements nor render those statements improper threats.

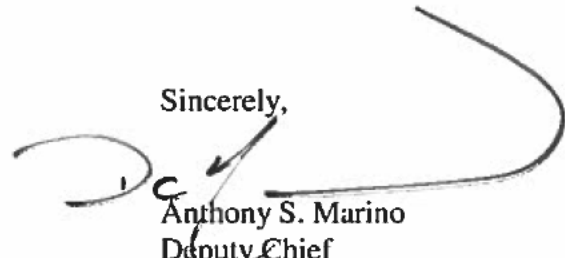
However, the Police Commissioner also acknowledged that Officer Lawrence's removal of the individual's identification from his bag was improper, and warrants appropriate discipline.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline for the allegation of an improper search of an individual. Additionally, the Police Commissioner intends to impose no disciplinary action for the allegation that Police Officer Lawrence threatened to remove an individual to the hospital.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

December 14, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. PO Joshua Lawrence
Disciplinary Case No.: 2023-29820

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated December 12, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and take no disciplinary action against Police Officer Lawrence as to Specification One (1) pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. The letter also states that you agree with the findings of the CCRB as to Specification Two (2), the improper search, but disagree with the imposition of Charges and Specifications and intend to direct the issuance of a Schedule “A” Command Discipline. I am responding to Deputy Chief Marino’s notification.

As to Specification One (1), Deputy Chief Marino stated that you disagree with the findings that PO Lawrence threatened to remove § 87(2)(b) to the hospital. Deputy Chief Marino stated that based on the totality of the circumstances, PO Lawrence merely provided a “reasonable explanation” and did not threaten to remove § 87(2)(b) to the hospital. CCRB disagrees with this determination. The circumstances surrounding Specification One (1) are captured on both LT Taybron and PO Lawrence’s BWC footage. The first twelve seconds of LT Taybron’s BWC video show a brief part of the conversation with § 87(2)(b) (202203990_20230227_1008_DMI.MP4). § 87(2)(b) is speaking with the officers and there does not appear to be any traffic driving down the street at the time. The footage also captures LT Taybron speaking to EMS when they arrive (at approximately 20:01). LT Taybron says that § 87(2)(b) is intoxicated and would not leave after staff would not let him into the club. He also says that § 87(2)(b) was yelling and screaming while running in the street, and that § 87(2)(b) was “acting up, acting a fool.” At 23:35, an EMT asks LT Taybron if there was anything else indicating that § 87(2)(b) was intoxicated, and LT Taybron said that he did not see § 87(2)(b) stumbling. The EMT tells LT Taybron that he will not be transporting § 87(2)(b) to the hospital. PO Lawrence’s BWC captures the entirety of § 87(2)(b)

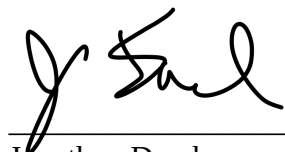
§ 87(2)(b) physical actions with PO Lawrence before PO Lawrence handcuffs him (202203990_20230227_1008_DMIA.MP4). § 87(2)(b) occasionally waves his hands and points his fingers at the officers and occasionally walks away from PO Lawrence as he speaks to him. After 02:26, when PO Lawrence handcuffs § 87(2)(b) he says, “Yeah, and you can’t care for yourself, so now you’re gonna go to the hospital.”

Patrol Guide Procedure 216-01 defines an AIDED case as, “Any occurrence coming to the attention of a uniformed member of the service which requires that a person, other than a prisoner, receive medical aid or assistance because such person is: Sick or injured (except vehicle or bicycle collision), Dead, A lost person, Mentally ill, An abandoned, destitute, abused or neglected child, Runaway child, Adult/child requiring care due to arrest, hospitalization, death of parent/guardian/person responsible for care or a homeless individual. Members of service are required, upon arrival at the scene of an AIDED incident, to “request an ambulance or doctor, if necessary.” Patrol Guide Procedure 221-13 defines an emotionally disturbed person as, “A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.” The Procedure requires officers to take emotionally disturbed people into protective custody.

Here, there was no indication based on § 87(2)(b) interactions with the officers that he required immediate medical attention or that he was a threat to himself or others. As captured on LT Taybron’s BWC footage, LT Taybron told EMS that § 87(2)(b) was not stumbling and BWC does not show § 87(2)(b) stumble or walk unsteadily. While the video does show § 87(2)(b) talking loudly at officers and walking around, such actions, alone, do not rise to the level of danger necessary to classify someone as emotionally disturbed or to detain someone for medical evaluation. There was no reason to believe that § 87(2)(b) could not care for himself, presented a threat to others, was emotionally disturbed, or otherwise was in any of the categories of AIDED persons outlined in the Patrol Guide to require that he be forcibly removed to the hospital. Therefore, PO Lawrence and the other officers did not have sufficient reason to believe that § 87(2)(b) needed to be evaluated by EMS, much less go to the hospital. Based on the totality of the circumstances, when PO Lawrence said “Yeah, and you can’t care for yourself, so now you’re gonna go to the hospital”, he clearly intended to threaten to remove § 87(2)(b) to the hospital.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB would request that Charges and Specifications against PO Lawrence for both Specifications be served and not dismissed.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 15, 2023

Re: CCRB Case No. 202203990 (Incident Date: June 16, 2022) regarding Police Officer
Joshua Lawrence, Tax No. 966662 (DADS No. 2023-29280)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 14, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Joshua Lawrence, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Lawrence for the reasons expressed in my December 12, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Lawrence be issued a Schedule "A" Command Discipline for the improper search. Additionally, the Police Commissioner directs that no disciplinary action be imposed for the allegation that Police Officer Lawrence threatened to remove the individual to the hospital.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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